

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1234
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-221, Arizona Revised Statutes, is amended to
3 read:

4 8-221. Juveniles; parents and guardians; right to counsel;
5 appointment; guardian ad litem

6 A. The court shall appoint an attorney for a child in all
7 delinquency proceedings that commence with a petition or that may involve
8 detention, dependency proceedings or termination of parental rights
9 proceedings that are conducted pursuant to this title. IN A DELINQUENCY
10 PROCEEDING, the court shall appoint the CHILD'S attorney before the first
11 hearing. The CHILD'S attorney shall represent the child at all stages of
12 the proceedings ~~and, in a dependency proceeding, through dismissal.~~

13 B. If a parent or guardian is found to be indigent and entitled to
14 counsel, the juvenile court shall appoint an attorney to represent the
15 person or persons unless the person knowingly, intelligently and
16 voluntarily waives counsel.

17 C. Before any court appearance that may result in
18 institutionalization or mental health hospitalization of a juvenile, the
19 court shall appoint counsel for the juvenile if counsel has not been
20 previously appointed or retained by or for the juvenile.

21 D. The county board of supervisors may fix a reasonable sum to be
22 paid by the county for the services of an appointed attorney.

23 E. In a county where there is a public defender, the public
24 defender may act as attorney in either:

25 1. A delinquency or incorrigibility proceeding when requested by
26 the juvenile court.

1 2. Any other juvenile proceeding that is conducted pursuant to this
2 title if the board of supervisors authorizes the appointment of the public
3 defender.

4 F. In all ~~juvenile court proceedings in which the dependency~~
5 ~~petition includes an allegation that the juvenile is abused or neglected~~
6 ~~DEPENDENCY PROCEEDINGS OR TERMINATION OF PARENTAL RIGHTS PROCEEDINGS THAT~~
7 ~~ARE CONDUCTED PURSUANT TO THIS TITLE~~, the court ~~may~~ SHALL appoint a
8 guardian ad litem to protect the juvenile's best interests. ~~This~~ THE
9 guardian ad litem shall be an attorney. ~~The guardian ad litem is not the~~
10 ~~child's~~ ~~DEPENDENT ON THE CHILD'S AGE AND ABILITY TO EXPRESS AN OPINION,~~
11 THE COURT MAY ALSO APPOINT AN attorney FOR THE CHILD. [A GUARDIAN AD
12 LITEM WHO IS APPOINTED PURSUANT TO THIS SUBSECTION SHALL HAVE THE SAME
13 AUTHORITY TO PARTICIPATE IN ANY DEPENDENCY PROCEEDING OR TERMINATION OF
14 PARENTAL RIGHTS PROCEEDING AS ANOTHER ATTORNEY WHO IS PARTICIPATING IN THE
15 SAME PROCEEDING.]

16 G. Any guardian ad litem or attorney appointed for a juvenile shall
17 meet with the juvenile before the preliminary protective hearing, if
18 possible, or within fourteen days after the preliminary protective
19 hearing. The guardian ad litem or THE CHILD'S attorney ~~appointed for the~~
20 ~~juvenile~~ also shall meet with the juvenile before all substantive
21 hearings. On a showing of extraordinary circumstances, the judge may
22 modify this requirement for any substantive hearing.

23 Enroll and engross to conform

24 Amend title to conform

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